

as any other trustee; and be liable to the interference of the Court if the exercise of the discretion is affected by improper motives (*b*).

And in a subsequent phase of the same case, the remainderman having offered to purchase the estate for 7,500*l.*, and undertaken at the bar not to withdraw his offer, an injunction was granted by Kay, J., to restrain the tenant for life from selling for less than 7,500*l.*, and from entering into any contract (otherwise than by public auction), for sale of the estate, or any part thereof, without first communicating the offer to the remainderman, and giving him two clear days to make an advance on the price offered (*c*).

Effect of decree in action to execute trusts.— It is conceived, that the fact that a decree has been made in a pending action for the execution of the trusts of a will or settlement of realty, will not prevent a tenant for life thereunder from exercising the powers of the Act without procuring the consent of the Court. To require such consent would be to impose a fetter on the free alienation by the tenant for life inconsistent with the spirit and terms of the Act.¹

11. Notice to trustees.— By sect. 45, sub-sect. (1), the tenant for life, when intending to make a sale, exchange, partition, lease, mortgage, or charge, is to give notice of his intention to each of the trustees of the settlement, and also to the solicitor for the trustees, if any such solicitor is known to the tenant for life, by registered letter, posted not less than one month before the making by the tenant for life of the sale, exchange, partition, lease, mortgage, or charge, or of a contract for the same; and by sub-sect. (2), at the date of notice given the number of trustees shall not be less than two, unless a contrary intention is expressed in the settlement.

General notice sufficient.— Under this section it * was held that a general notice of intention to sell [*558] or lease all or any part of the settled estate at any

(*b*) See *post*, p. 616; and see *Re Mansel's Settled Estates*, W. N. 1884, p. 209. (c) *Wheelwright v. Walker*, 48 L. T. N. S. 867; 31 W. R. 912.

¹ So now decided, *Cardigan v. Curzon-Howe*, 33 W. R. 836; 30 Ch. D. 531.